Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1382
Claimant:	Richard Wagner
Adjuster:	Christopher Wong

2023-09-01 - Reviewed the initial loss report for the left-turn collision. Insured states they were turning left at an intersection when the other vehicle proceeded through on a green signal. Police report requested and pending. Photos of both vehicles uploaded to file.

2023-09-04 - Claimant's attorney has notified this office of representation and requested that all further contact go through counsel. Acknowledgment letter sent. Claimant reports neck pain and stiffness consistent with whiplash and has begun treatment with a chiropractor.

2023-09-07 - Obtained the recorded statement from the insured. Insured confrims signal timing was reviewed and maitnains the claimant's vehicle entered the intersection at speed. Intersection camera footage requested from the municipality, response expected in several business days.

2023-09-13 - Received medical records from claimant's treating provider through counsel. Diagnosis listed as cervical strain with whiplash-type symptoms. Records reviewed and forwarded to the medical review unit for assessment of treatment reasonableness. Counsel has requested a demand package, which is under review.

2023-09-17 - Liability analysis updated. Based on the police report narrative and partial camera footage, liability appears to be shared, with the insured likely bearing the greater share due to the left-turn yield requirement. Reserve reviewed and adjusted for the bodily injury component. Supervisor review scheduled to confirm settlement authority before any counter-offer is made to counsel.

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Recorded Statement

Claim number:	C-1382
Statement of:	Richard Wagner
Taken by:	Christopher Wong
Date:	2023-09-06

Q: Thank you for agreeing to give this recorded statement. Please state your full name for the record.

A: I'd rather not give my full name on a recording, but I can confirm I'm the driver of the vehicle involved.

Q: That's fine. Can you describe where the accident happened?

A: It was at an intersection in Sugar Land, Texas. I was turning left across the lanes to get into a shopping center parking lot.

Q: What were the traffic conditions when you started your turn?

A: It was fairly light. I checked for oncoming cars, and I saw one a fair distance away, so I started to go.

Q: What happened next?

A: A vehicle coming from the opposite direction hit the front passenger side of my car. I think they were going faster than the speed limit, but I can't be sure.

Q: Did you see the other vehicle before the impact?

A: Not clearly. I glanced back at the road and then there was a loud bang and my car spun a little.

Q: Were you injured?

A: Yes. My neck snapped forward and then back, and I have pain in my neck and upper back. I also have headaches that started later that day.

Q: Did you seek medical attention?

A: I went to an urgent care clinic that evening. They took X-rays and told me it looked like whiplash. I've been referred to a physical therapist.

Q: Are you still experiencing symptoms?

A: Yes. Turning my head to the right is hard, and sitting for long periods makes it worse.

Q: Did you make any statements at the scene to the other driver or police?

A: I told the officer I was okay at first, because I didn't realize how stiff I'd become. I did tell him what I remembered about the turn.

Q: Thank you. Is there anything you'd like to add?

A: Only that I'm still getting treatment, and I'm keeping copies of all my medical bills.

Q: Thank you for your time. This concludes the statement.